



CHAPTER xxii.

An Act to confirm the amalgamation of the institutions known as the Orphan Working School the Alexandra Orphanage for Infants and the Convalescent Seaside Home for Orphans to alter the name of the president vice-presidents treasurer and governors of the Orphan Working School to vest in them the property of the Alexandra Orphanage for Infants to confer further powers on them and for other purposes.

A.D. 1905.

[30th June 1905.]

WHEREAS a charity called the Orphan Working School was instituted in the city of London on the tenth day of May one thousand seven hundred and fifty-eight and in the year one thousand eight hundred and forty-eight the president vice-presidents treasurer and governors for the time being of the institution were incorporated by the name of "The President Vice-Presidents Treasurer and Governors of the Orphan Working School" by an Act (hereinafter called "the Act of 1848") intituled "An Act to incorporate the Members of the Institution called 'the Orphan Working School' now established at Haverstock Hill Hampstead Road in the county of Middlesex and to enable them the better to carry on their charitable designs" and it was in the said Act recited (inter alia) that the said charity had theretofore been and was then conducted on a plan agreed upon by the members thereof which was expressed in the words following "That poor children be considered as proper objects of this charity and that the strictest regard be had to such as are most necessitous especially orphans that such children admitted to this charity

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A.D. 1905. — “ shall be provided with food clothes lodging and everything
“ necessary for them until they arrive at the age of fourteen years
“ or longer at the discretion of the general committee and then be
“ placed out as apprentices or servants and a sum of money if
“ required be given with them for clothing that they be carefully
“ instructed in the principles and duties of the Christian religion
“ as contained in the Holy Scriptures taught to read and write as
“ far as may be necessary in any future station and used to such
“ labour and work as may be convenient and suitable that they
“ statedly attend the public worship of God in some congregation
“ of Protestant dissenters under the inspection of the master and
“ mistress ” :

And whereas by virtue of an indenture or deed of trust dated the thirtieth day of August one thousand eight hundred and sixty-seven (hereinafter called “the deed of trust of 1867”) a charity called “the Alexandra Orphanage for Infants” (now at Hornsey Rise in the county of Middlesex) was founded the management of which institution was vested in twelve governors six being members of the said Orphan Working School and the remaining members being elected as therein mentioned the purpose of such charity being to receive orphan and other necessitous children of any age not exceeding the age of five years and of both sexes and to board clothe nurse and educate them until they are eight years of age and the said deed set forth (inter alia) that by reason of the object and desire of the founders of the said Alexandra Orphanage for Infants being that its benefits should be extended to all necessitous infants it was a fundamental law and to be distinctly regarded as of the very essence of the charity that at that time and at all future times no religious distinction of any sort shall be introduced either as a qualification for admission or after admission and that while it was fully intended that the children should have a Protestant evangelical scriptural education no denominational rules or catechism whatever should be adopted :

And whereas by virtue of an indenture or deed of trust dated the twenty-second day of October one thousand eight hundred and seventy-five (hereinafter called “the deed of trust of 1875”) a charity called “the Convalescent Seaside Home for Orphans in connection with the Orphan Working School and Alexandra Orphanage for Infants” (now at Harold Road Margate in the county of Kent) was founded the purpose of such charity being

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to provide a convalescent home for the benefit primarily of the children in the said Orphan Working School and the said Alexandra Orphanage for Infants and subject thereto for the benefit of orphan and necessitous children generally and it was by the said deed declared that notwithstanding the trusts declared thereby the trustees of the Convalescent Home should have full power at any time thereafter if they should think it desirable to amalgamate the said home with the Orphan Working School and the Alexandra Orphanage so that the three charities might become one institution for carrying on in such one institution a similar work to that carried on by the said three charities separately and for the purposes of such amalgamation the said trustees should have full power to make such terms conditions stipulations and agreements as they should think fit and might convey the piece of land and building therein mentioned and all the property belonging to the said home might be vested as the said trustees should think fit for the purposes of that deed : A.D. 1905.

And whereas in the year one thousand eight hundred and seventy-six after divers negotiations had been carried on between the Orphan Working School and the Alexandra Orphanage for Infants with a view to the amalgamation of the two charities on the basis that no denominational catechism should be used and that the children should attend divine service either in the chapels of the institution or at such Protestant place or places of worship as the committee should direct it was agreed and resolutions were duly passed by the general court of governors of the Orphan Working School and also by the trustees and the governors of the said Alexandra Orphanage for Infants at meetings convened and held in accordance with the byelaws thereof that the possession of all the estate and effects of the Alexandra Orphanage for Infants should be transferred to the Orphan Working School on the thirty-first day of December one thousand eight hundred and seventy-six to the intent that the trusts of the same might be thereafter administered by the Orphan Working School provided that the Orphan Working School would accept the administration of the trusts aforesaid and undertake to extend to the children leaving the Alexandra Orphanage for Infants without election the benefits of the Orphan Working School subject to any regulations the Orphan Working School might deem expedient and the agreement embodied in such resolutions is hereinafter referred to as "the agreement of 1876" :

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And whereas possession of the said estate and effects of the Alexandra Orphanage for Infants was accepted by the Orphan Working School upon the terms of the agreement of 1876 and on the basis hereinbefore stated as to the religious instruction of the children and the said two charities have since the thirty-first day of December one thousand eight hundred and seventy-six been carried on as one amalgamated charity but no conveyance of the lands of the Alexandra Orphanage has been made to the president vice-presidents treasurer and governors of the Orphan Working School :

And whereas by virtue of an indenture or deed of conveyance dated the fourth day of June one thousand eight hundred and seventy-seven (hereinafter referred to as "the deed of conveyance of 1877") after reciting the deed of trust of 1875 and reciting that the trustees of the Convalescent Seaside Home deemed it advisable (in pursuance of the power in that behalf contained in the deed of trust of 1875) to amalgamate the said Convalescent Home with the Orphan Working School and the Alexandra Orphanage for Infants so that the three charities might become one institution the trustees of the Convalescent Home granted to the said Orphan Working School and their assigns the piece or parcel of ground with the buildings erected thereon comprised in the deed of trust of 1875 To the intent that the said Convalescent Home might be thenceforth amalgamated with the Orphan Working School and the Alexandra Orphanage for Infants and that the three charities might become one institution for carrying on in such one institution a similar work to that previously to such amalgamation carried on by the said three charities separately and that the said hereditaments might thenceforth be appropriated and used by and under the management of the Orphan Working School for the purposes of such amalgamated charity in such manner and subject to such byelaws as the Orphan Working School should from time to time direct and discharged (save as therein mentioned) from the trusts expressed and declared concerning the same in and by the said deed of trust of 1875 :

And whereas since the year one thousand eight hundred and seventy-seven the Orphan Working School the Alexandra Orphanage for Infants and the said Convalescent Seaside Home have been administered and carried on as one amalgamated charity upon a religious basis consistent with the terms of the agreement

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of 1876 which has been eminently conducive to the harmonious working of the amalgamated charity and large sums have since that time been subscribed to the amalgamated charity while being administered on these principles : A.D. 1905.

And whereas doubts have arisen whether the amalgamation of the Orphan Working School and the Alexandra Orphanage for Infants was in law legally and validly effected and difficulties have arisen as to whether and how far the property originally belonging to one or other of the said two charities can be applied to the general purposes of the combined charities :

And whereas the Orphan Working School the Alexandra Orphanage for Infants and the Convalescent Home have objects which are similar in aim and supplemental to each other and it is expedient and would conduce to greater efficiency and economy if the amalgamation of the said three charities purported to have been effected as hereinbefore recited were rendered legally effectual and binding :

And whereas it is expedient that the Act of 1848 should in divers particulars be amended and that the amalgamated charity should continue to be administered on the basis hereinbefore referred to :

And whereas it is apprehended that doubts may be raised whether certain building repairing or other leases which since the passing of the Act of 1848 have been granted by or on behalf of the president vice-presidents treasurer and governors of the Orphan Working School in exercise or intended exercise of the powers of that Act may not be invalid by reason of the length of the terms thereby granted or otherwise and it is expedient to remove such doubts and to confirm leases already granted :

And whereas it is expedient to alter the name of and to confer further powers on the governing body of the combined charity for the management thereof and to make such other provisions as this Act contains :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal

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A.D. 1905. and Commons in this present Parliament assembled and by the
— authority of the same as follows :—

PART I.

PRELIMINARY.

Short title.

1. This Act may be cited as the Orphan Working School and Alexandra Orphanage Act 1905 and the Act of 1848 and this Act may be cited together as the Orphan Working School and Alexandra Orphanage Acts 1848 and 1905.

Act divided
into Parts.

2. This Act is divided into Parts as follows (that is to say) :—

Part I Preliminary.

Part II Amendment of the Act of 1848 Confirmation of the amalgamation of the Orphan Working School the Alexandra Orphanage for Infants and the Convalescent Seaside Home for Orphans and vesting in the Orphan Working School and Alexandra Orphanage of the Alexandra Orphanage Trust.

Part III Miscellaneous.

Interpreta-
tion.

3. In this Act (unless there be something in the subject or context repugnant to such construction or unless it is otherwise explained) the several words and expressions to which meanings are assigned by the Act of 1848 have the same respective meanings and in this Act (unless there be something in the subject or context repugnant to such construction or unless it is otherwise explained)—

The expression “the deed of trust of 1867” means the indenture dated the thirtieth day of August one thousand eight hundred and sixty-seven hereinbefore recited ;

The expression “the deed of trust of 1875” means the indenture dated the twenty-second day of October one thousand eight hundred and seventy-five hereinbefore recited ;

The expression “the deed of conveyance of 1877” means the indenture dated the fourth day of June one thousand eight hundred and seventy-seven hereinbefore recited ;

The expression “the Alexandra Orphanage Trustees” means the trustees of the deed of trust of 1867 ;

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The expression "the Alexandra Orphanage Trust" means the trust created by the deed of trust of 1867 and all the property real and personal immediately before the passing of this Act vested in the Alexandra Orphanage Trustees or in any other person or persons for or applicable to the purposes of the deed of trust of 1867; A.D. 1905.

The expression "the Orphan Working School and Alexandra Orphanage" means the president vice-presidents treasurer and governors of the Orphan Working School incorporated by the Act of 1848 and upon whom further powers are conferred by and in whom the Alexandra Orphanage Trust is vested by this Act.

PART II.

AMENDMENT OF THE ACT OF 1848 CONFIRMATION OF THE
 AMALGAMATION OF THE ORPHAN WORKING SCHOOL THE
 ALEXANDRA ORPHANAGE FOR INFANTS AND THE CONVALESCENT
 SEASIDE HOME FOR ORPHANS AND VESTING IN THE
 ORPHAN WORKING SCHOOL AND ALEXANDRA ORPHANAGE
 OF THE ALEXANDRA ORPHANAGE TRUST.

4. From and after the passing of this Act the president vice-presidents treasurer and governors of the Orphan Working School incorporated by the Act of 1848 shall be called and known by the name of "The Orphan Working School and Alexandra Orphanage" with all the powers conferred upon them by the Act of 1848 as amended by this Act for the purpose of the control and administration as one combined institution of the said institutions the Orphan Working School the Alexandra Orphanage for Infants and the Convalescent Seaside Home for Orphans the consolidation and amalgamation of which into one is confirmed by this Act and the Act of 1848 as amended by and subject to the provisions of this Act shall apply to the Orphan Working School and Alexandra Orphanage accordingly.

5. The amalgamation and consolidation of the Orphan Working School and the Alexandra Orphanage for Infants purported to have been carried out on the thirty-first day of December one thousand eight hundred and seventy-six and the subsequent amalgamation and consolidation with those two institutions so amalgamated of the Convalescent Seaside Home

Alteration of name of president vice-presidents treasurer and governors of Orphan Working School to Orphan Working School and Alexandra Orphanage.

Confirmation of amalgamation of Orphan Working School and Alexandra Orphanage

A.D. 1905.

for Infants
and Con-
valescent
Seaside
Home for
Orphans.

for Orphans effected by the deed of conveyance of 1877 shall be deemed to have been valid binding and effectual to all intents and purposes whatsoever as from the said thirty-first day of December one thousand eight hundred and seventy-six and the date of the said deed respectively.

Vesting of
property of
Alexandra
Orphanage
Trust in
Orphan
Working
School and
Alexandra
Orphanage.

6. From and after the passing of this Act the freehold land and buildings situated at Sunnyside Road Hornsey Rise Holloway in the county of Middlesex and now known as the Alexandra Orphanage for Infants and all other lands buildings and property real and personal wherever situated which belong to or are held by or are vested in the Alexandra Orphanage Trustees or any one or more of them or any other person or persons on their behalf or for the uses trusts and purposes in the deed of trust of 1867 set forth whether held absolutely or as security or otherwise howsoever shall be and the same are hereby transferred to and vested in the Orphan Working School and Alexandra Orphanage in trust for the uses and purposes specified in the Act of 1848 as amended by this Act and shall thenceforth be held managed sold conveyed assigned transferred released discharged or otherwise dealt with by the said corporate body under their corporate name without the necessity of any connecting or continuing title or separate vesting other than this Act and all conveyances dispositions grants securities and other deeds instruments and writings whatsoever which before the passing of this Act have been granted executed or taken to or in favour of the Alexandra Orphanage Trustees or their predecessors in office or any one or more of them or any other person or persons for their behoof or for the uses and purposes of the Alexandra Orphanage for Infants shall be as valid and of as full force and effect in favour of the Orphan Working School and Alexandra Orphanage as if the same had been made granted executed or taken to by or in favour of them the said corporate body and from and after the passing of this Act the Alexandra Orphanage Trustees shall cease to be Trustees of the Alexandra Orphanage Trust and the deed of trust of 1867 the deed of trust of 1875 and the deed of conveyance of 1877 and all the trusts and provisions therein respectively contained shall be and the same are hereby extinguished and declared null and void and of none effect without prejudice to any act or thing lawfully done right accrued or liability incurred thereunder before the passing of this Act and the trustees heretofore acting in the execution of the said deeds or any of them shall be indemnified by virtue of this Act in

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respect of all acts and things done by them or any of them in the execution in good faith by them of the said deeds or any of them. A.D. 1905.

7.—(1) All agreements assurances contracts covenants conveyances mortgages deeds and other instruments acts or things made entered into executed given or done by to or with the Alexandra Orphanage Trustees or by the president vice-presidents treasurer and governors of the Orphan Working School with reference to the Alexandra Orphanage Trust or the Convalescent Seaside Home for Orphans and in force at the time of the passing of this Act shall be as valid and effectual in every respect for against or with reference to the Orphan Working School and Alexandra Orphanage as they would have been but for the said transfer for against or with reference to the Alexandra Orphanage Trustees or the president vice-presidents treasurer and governors of the Orphan Working School as the case may be.

Saving and
transitory
provisions as
to existing
contracts and
otherwise.

(2) Any action arbitration or other proceeding or cause of action or other proceeding existing or pending at the time of the passing of this Act by with against or in favour of the Alexandra Orphanage Trustees or the president vice-presidents treasurer and governors of the Orphan Working School in respect of the Alexandra Orphanage Trust or the Convalescent Seaside Home for Orphans shall not abate or be prejudicially affected by the transfer but the same may be continued and carried on by with against or in favour of the Orphan Working School and Alexandra Orphanage.

(3) All rents charges debts and sums of money owing to or by the Alexandra Orphanage Trustees or the president vice-presidents treasurer and governors of the Orphan Working School in respect of the Alexandra Orphanage Trust or the Convalescent Seaside Home for Orphans at the time of the passing of this Act shall be payable to or by the Orphan Working School and Alexandra Orphanage with all interest if any due or accruing due for the same and may be recovered and enforced by from or against the Orphan Working School and Alexandra Orphanage in like manner and as effectually as they could have been recovered and enforced by from or against the Alexandra Orphanage Trustees or the president vice-presidents treasurer and governors of the Orphan Working School.

(4) Any bequest made to the Orphan Working School the Alexandra Orphanage for Infants and the Convalescent Seaside Home for Orphans or to any of them by any person whether dying

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A.D. 1905. — before or after the passing of this Act and which may not have been paid or discharged at the passing hereof shall be deemed to have been made to the Orphan Working School and Alexandra Orphanage as by this Act constituted and shall be payable to the Orphan Working School and Alexandra Orphanage as fully and effectually as it would have been payable to the president vice-presidents treasurer and governors of the Orphan Working School or to the Alexandra Orphanage for Infants or to the Convalescent Seaside Home for Orphans or any of them as the case may be if this Act had not been passed.

Trusts of property vested in Orphan Working School and Alexandra Orphanage.

8. From and after the passing of this Act the Orphan Working School and Alexandra Orphanage shall hold the lands hereditaments and other property by this Act transferred to and vested in them to the intent that the same shall be amalgamated with and form one trust fund with the trust property immediately before the passing of this Act vested in them and so that the whole of such property vested in them and any other property hereafter acquired by them shall (subject as to any property hereafter acquired by them to any special trusts or conditions for the time being lawfully affecting the same) be subject and applicable to the trusts and purposes of the Act of 1848 as amended by this Act and so that the powers and provisions of the Act of 1848 as amended by this Act shall apply indiscriminately to the whole of the property for the time being vested in the Orphan Working School and Alexandra Orphanage upon the trusts and for the purposes aforesaid and the same shall be administered as one consolidated trust The purposes for which the property so vested shall notwithstanding anything in the Act of 1848 the deed of trust of 1867 the deed of trust of 1875 or the deed of conveyance of 1877 be held are—

To receive orphan or other necessitous children from earliest infancy and to board clothe nurse educate and maintain them and to provide everything necessary for them until they arrive at the age of fourteen years or at the discretion of the committee for a longer period and at the discretion of the committee to place them out in life in such manner as the committee think fit.

Administration of trust to be undenominational.

9. Notwithstanding anything in the Act of 1848 the deed of trust of 1867 or the deed of trust of 1875 it is hereby enacted that it be distinctly regarded as of the very essence of the amalga-

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mated and consolidated charity known as the Orphan Working School and Alexandra Orphanage that at the present time and in all future times no religious distinction of any sort shall be introduced either as a qualification for admission to the benefits of the charity or after admission and that whilst the children shall have a scriptural education no denominational rules or catechism whatever shall be adopted or taught and that the children shall attend divine service in the chapels or chapel of the institution or at such Protestant places or place of worship as the general committee shall from time to time determine.

A.D. 1905.

10.—(1) The Orphan Working School and Alexandra Orphanage shall have power to make rules and regulations—

Power to
make rules
and regula-
tions.

- (i) For the regulation of the proceedings of the general or other court or meeting of the corporate body and as to the qualification of persons entitled to take part in or vote at the same and for the regulation of the proceedings of their respective committees and the qualification appointment or election of president vice-presidents treasurer governors and subscribers of the institution ;
- (ii) For determining the rights of governors and subscribers ;
- (iii) For regulating the constitution powers and meetings of the general committee and the appointment by it of sub-committees and for fixing the least number of members requisite to be present at a meeting of the general court or any committee or other meeting or otherwise ;
- (iv) For the nomination election and admission of children to the benefits of the charity ; and
- (v) Generally for regulating all matters connected with the government and administration of the institution the management and administration of the property thereof the discipline educational business and internal economy of the schools and other institutions carried on by the said corporate body and for carrying out the purposes for which the property of the Orphan Working School and Alexandra Orphanage is to be held in trust as hereinbefore declared and to annul amend or alter such rules and regulations from time to time as they shall think fit.

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(2) The existing byelaws rules and regulations made by the president vice-presidents treasurer and governors of the Orphan Working School and in force at the passing of this Act shall continue in force and be applicable to the amalgamated charity as if made by the Orphan Working School and Alexandra Orphanage until altered or revoked by the said corporate body.

(3) The existing committees sub-committees and officers appointed or elected by the president vice-presidents treasurer and governors of the Orphan Working School before the passing of this Act and in office at the passing thereof shall continue in office on the same terms as they would have continued if this Act had not been passed subject nevertheless to such provisions as may be made relating to such committees sub-committees and officers in and by any rules and regulations to be made under the Act of 1848 as amended by this Act.

Power to
mortgage
sell &c.
lands &c.

11. The Orphan Working School and Alexandra Orphanage may from time to time sell mortgage charge exchange or otherwise dispose of the lands and tenements or any personal estate and property (including moneys secured on mortgage of or charged upon any hereditaments) or any part thereof now or by this Act vested in them or which shall hereafter be vested in them under the provisions of the Act of 1848 as amended by this Act or otherwise or any easements rights or privileges to be exercised or enjoyed in over upon or under the same or any part thereof and may do and execute all such acts matters and things as may be necessary for effectuating and completing any such sale mortgage charge exchange or disposition Provided always that the moneys to arise from any such sale mortgage charge exchange or otherwise as aforesaid shall be applied by the said corporate body for the establishment improvement support and maintenance of the Orphan Working School and Alexandra Orphanage the payment and discharge of the liabilities existing immediately before the passing of this Act in respect of the Orphan Working School the Alexandra Orphanage Trust and the Convalescent Seaside Home or any of them and generally for the purposes of the Act of 1848 as amended by this Act.

Power to
lease.

12. The Orphan Working School and Alexandra Orphanage may demise all or any part of the lands and hereditaments for the time being vested in them for any term of years and upon such terms and conditions and subject to such covenants and provisions as the said corporate body think fit.

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13. The powers conferred by the sections of this Act of which the marginal notes are "Power to mortgage sell &c. lands &c." and "Power to lease" shall as regards property of the Orphan Working School and Alexandra Orphanage forming an endowment for charitable purposes (other than educational) and not exempted from the jurisdiction or control of the Charity Commissioners for England and Wales or the powers or provisions of the Charitable Trusts Acts 1853 to 1894 by such Acts or otherwise be exerciseable with the consent of the said Commissioners and as regards property forming an endowment for educational purposes and not exempted under the Charitable Trusts Acts 1853 to 1894 the Endowed Schools Acts 1869 to 1889 or otherwise with the consent of the Board of Education.

A.D. 1905.
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 As to jurisdiction of Charity Commissioners and Board of Education.

14. The following parts of the Act of 1848 shall be and are hereby repealed (viz.) In section 3 from the words "and also for the purposes of the institution to convey" to the end of such section and also the whole of sections 5 6 and 10 but so as not to invalidate anything done in pursuance thereof before the passing of this Act.

Repeal of part of section 3 and whole of sections 5 6 and 10 of Act of 1848.

15. The Orphan Working School and Alexandra Orphanage may from time to time invest any moneys in their hands in or upon any stocks funds or securities for the time being authorised by law as investments for trust funds and may from time to time vary such investments into or for others of the same or a like nature and section 9 of the Act of 1848 (Power to invest the moneys of the institution on mortgage) is hereby repealed Provided nevertheless that the Orphan Working School and Alexandra Orphanage may allow any money or investments which they may receive or to which they may be or become entitled to remain in the actual state of investment in which they receive the same or in which the same are when they become entitled thereto and for so long as they in their discretion think fit.

Powers of investment.

16. Any land acquired by the Orphan Working School and Alexandra Orphanage by foreclosure shall unless required or likely within seven years of its acquisition to be required for carrying on the work of the charity be sold within five years from the acquisition thereof or such extended period as may be determined by the High Court of Justice or any judge thereof sitting at chambers.

As to sale of land acquired by foreclosure.

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PART III.

MISCELLANEOUS.

Confirmation
of existing
leases.

17. The several leases heretofore granted by or on behalf of the president vice-presidents treasurer and governors of the Orphan Working School since the passing of the Act of 1848 in exercise or intended exercise of the powers of the Act of 1848 or otherwise shall notwithstanding that such leases or any of them may have been granted for a period exceeding twenty-one years or otherwise are not authorised by or within the powers of the Act of 1848 be as from the respective times of making thereof respectively (and so as to establish all underleases and other derivative estates and interests) deemed to have been valid binding and effectual to all intents and purposes whatsoever anything contained in the Act of 1848 or any law or statute to the contrary thereof in anywise notwithstanding.

Costs of Act.

18. The costs charges and expenses of and incidental to the preparing for obtaining and passing of this Act shall after being taxed and ascertained by one of the taxing officers of the Houses of Parliament be paid by the Orphan Working School and Alexandra Orphanage out of any of their funds or property.

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